

Gaurav Arya v. State of U.P. & Ors.

High Court of Judicature at Allahabad · Division Bench · 10 February 2014 · WRIT - C No. 7864 of 2014 · **Writ disposed; licensee to examine the connection claim under the rules within six weeks.**

HEADNOTE

Shop occupant in a multi-storied complex whose new-connection application was not processed; licensee invoking Clause 4.9 expenses. Without deciding that clause, the Court directed the licensee to examine the claim in accordance with the rules and issue instructions for such connection as may be permissible, within six weeks.

FACTUAL SUMMARY

The petitioner, Gaurav Arya, owns shop No. G-6, B-6 at Taj Way Complex, Jeevani Mandi, Agra, and applied for an electricity connection which was neither processed nor granted. Counsel for respondent no. 3 submitted that, the shop being in a multi-storied complex, Clause 4.9 of the Electricity Supply Code, 2005 applied and the petitioner would have to bear the expenses. The petitioner maintained he was an individual seeking a permanent or temporary connection for his shop and that the respondents were obstructing supply.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::4.9

New connection in a multi-storied complex

HOLDING

Where a shop occupant in a multi-storied complex seeks a new electricity connection and the licensee invokes Clause 4.9 as requiring the applicant to bear expenses, the Court, without deciding that clause, directed the licensee to examine the claim in accordance with the rules and issue instructions for such connection as may be permissible, within six weeks. ¶ 5

PRINCIPLE TAGS

relegate-to-statutory-remedy Shop occupant in a multi-storied complex whose new-connection application was not processed; licensee invoking Clause 4.9 expenses.. ¶ 5

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER CLAUSE 4.9 OF THE ELECTRICITY SUPPLY CODE, 2005 APPLIES TO AN INDIVIDUAL SHOP OCCUPANT IN A MULTI-STORIED COMPLEX, AND WHETHER THAT OCCUPANT MUST BEAR THE CLAUSE 4.9 EXPENSES.

Raised by respondent no. 3; left to the licensee to examine in accordance with the rules. ¶ 3-5